

RIGHT TO INFORMATION (RTI) ACT, 2005 And Governance

Assignment-I

1. Explain the need and significance of the Right to Information Act, 2005, and discuss the process of enactment.

The Right to Information (RTI) Act, 2005 is an important law that gives citizens the right to obtain information held by public authorities. It aims to make government functioning more transparent, accountable and responsible.

Need and Significance:

1. Promotes transparency: Citizens can obtain information about government decisions, policies, expenditure and functioning.
2. Controls corruption: Access to official records can help expose corruption, misuse of public money and irregularities.
3. Ensures accountability: Government officials become more responsible because their decisions and actions can be questioned.
4. Strengthens democracy: An informed citizen can participate effectively in public affairs and make informed opinions.
5. Improves administration: RTI encourages government departments to maintain proper records and provide information within the prescribed time.
6. Empowers citizens: Ordinary people can use RTI to ask questions about public services, welfare schemes, development works and government expenditure.

Process of Enactment:

1. The demand for a legal right to information grew through people's movements, particularly the Mazdoor Kisan Shakti Sangathan (MKSS) movement in Rajasthan.
2. Several states introduced their own transparency laws during the 1990s.
3. The Central Government enacted the Freedom of Information Act, 2002, but it was not effectively implemented.
4. The Right to Information Bill, 2004 was introduced in Parliament.
5. The Bill was passed by the Lok Sabha and Rajya Sabha in May 2005.
6. The President gave assent on 15 June 2005.
7. The RTI Act, 2005 came fully into force on 12 October 2005.

Conclusion: The RTI Act changed the relationship between citizens and government by giving citizens a practical legal tool to obtain information and demand accountability.

2. What is the relationship between the Official Secrets Act, 1923 and the Right to Information Act, 2005?

The Official Secrets Act (OSA), 1923 and the Right to Information (RTI) Act, 2005 deal with government information from two different perspectives. The OSA emphasizes protection of official secrets, whereas RTI emphasizes transparency and citizens' access to information.

1. Purpose of the Official Secrets Act: The OSA is intended to protect certain official information, particularly information whose unauthorized disclosure may harm national security or other protected interests.
2. Purpose of RTI: The RTI Act gives citizens a legal right to obtain information from public authorities and promotes transparency and accountability.
3. Difference in approach: OSA is based mainly on secrecy of protected information, while RTI is based on disclosure of information, subject to exemptions.
4. Overriding effect of RTI: Section 22 of the RTI Act provides that the RTI Act has an overriding effect over inconsistent provisions of other laws. Therefore, secrecy cannot be used automatically to deny information when disclosure is required under RTI.
5. Exemptions under RTI: RTI itself recognizes that some information should remain protected. Section 8 provides exemptions for matters such as national security, certain confidential information and personal information.
6. Balance between secrecy and transparency: The two laws therefore need to be read together so that legitimate government secrets remain protected while unnecessary secrecy is reduced.

Conclusion: The OSA protects necessary official secrets, while RTI promotes transparency. The RTI Act provides the stronger framework for access to information but still permits lawful protection of sensitive information.

3. Explain the role of NGOs and RTI activities in promoting transparency and accountability.

NGOs (Non-Governmental Organizations) play an important role in helping citizens understand and effectively use the RTI Act. RTI activities also provide citizens with a practical method of monitoring government work.

Role of NGOs:

1. Creating awareness: NGOs conduct awareness programmes, workshops and campaigns to explain RTI rights and procedures.

2. Helping citizens file RTIs: They assist people in preparing applications and identifying the appropriate public authority.
3. Supporting weaker sections: NGOs can help people who may not have sufficient knowledge or resources to approach government offices.
4. Exposing corruption: NGOs may use RTI to obtain records relating to public expenditure, contracts, development projects and welfare schemes.
5. Monitoring government schemes: They compare official records with actual implementation of schemes such as roads, schools, public distribution and other welfare programmes.
6. Conducting social audits: Information obtained through RTI can be used to check whether public money has been used for the stated purpose.
7. Encouraging public participation: NGOs motivate citizens to question public authorities and participate in local governance.
8. Seeking corrective action: When irregularities are found, NGOs can bring them to the attention of authorities and appropriate institutions.

Role of RTI Activities:

- RTI provides access to records, documents, reports, orders and other information held by public authorities.
- It helps identify delays, irregularities and misuse of public resources.
- It makes officials more accountable for decisions and expenditure.
- It helps citizens monitor public services and government projects.
- It strengthens informed participation in democracy.

Conclusion: NGOs act as facilitators and awareness-builders, while RTI provides the legal mechanism for obtaining information. Together, they strengthen transparency, accountability and good governance.

4. What is misuse of the Right to Information Act and what safeguards can prevent its misuse?

The RTI Act is intended to serve transparency and public accountability. However, like any legal right, it may sometimes be used for purposes unrelated to genuine public information. Misuse should be distinguished from a genuine but inconvenient or critical RTI request.

Examples of Misuse:

1. Repeated applications: Filing the same or substantially similar applications repeatedly without a genuine reason.

2. Harassment: Using RTI applications to unnecessarily trouble or threaten public officials.
3. Personal disputes: Using RTI mainly to settle private or personal disputes.
4. Irrelevant questions: Asking for information that has little or no connection with the functioning of the public authority.
5. Excessive requests: Making very large or repetitive requests that unnecessarily consume administrative resources.
6. Private information: Seeking personal information about another individual without sufficient public interest.
7. Commercial or private purposes: Using information primarily for a private purpose rather than a legitimate public-interest objective.

Safeguards Against Misuse:

1. Section 8 exemptions: Certain information may be exempt from disclosure, including specified matters relating to national security, privacy and confidentiality.
2. Section 11 procedure: Where information relates to a third party, the Act provides a consultation procedure before disclosure in appropriate cases.
3. Proper application procedure: Applications should be addressed to the appropriate Public Information Officer (PIO) and should clearly identify the information sought.
4. Privacy protection: Personal information can be protected where disclosure is not justified by public interest.
5. Appeal system: Applicants have a right to appeal against wrongful denial, while authorities can also apply the Act's exemptions and procedures.
6. Responsible use: Citizens should use RTI for obtaining information rather than as a tool for intimidation or harassment.
7. Record management: Proper maintenance and proactive disclosure by public authorities can reduce unnecessary RTI applications.

Important point: There is no general rule that an RTI application can be rejected merely because an officer considers it inconvenient, critical or numerous. The request must be dealt with according to the Act and its lawful exemptions.

Conclusion: The objective is not to weaken RTI, but to prevent abuse while protecting genuine citizens' right to information.

5. Discuss important Supreme Court and High Court judgments related to the Right to Information Act.

The Supreme Court and High Courts have interpreted the RTI Act and clarified its relationship with transparency, privacy, public authorities and exemptions.

1. State of Uttar Pradesh v. Raj Narain (1975):

The Supreme Court recognized the importance of the people's right to know about acts of public authorities. It connected access to government information with democratic accountability and freedom of speech.

2. S.P. Gupta v. Union of India (1981):

The Supreme Court strongly emphasized the principle of open government and recognized the people's right to know about public affairs, subject to legitimate restrictions.

3. CBSE v. Aditya Bandopadhyay (2011):

The Supreme Court held that evaluated answer books are information accessible under RTI, subject to the Act. It also clarified that RTI provides access to information that exists in the records and does not require a public authority to create information or give explanations in a form that is not already recorded.

4. Girish Ramchandra Deshpande v. CIC (2013):

The Court dealt with personal information of a public servant and held that such information can be protected under the personal-information exemption unless disclosure is justified by a larger public interest.

5. Thalappalam Service Cooperative Bank Ltd. v. State of Kerala (2013):

The Supreme Court explained the meaning of “public authority” under Section 2(h). It held that not every cooperative society automatically becomes a public authority merely because it is regulated by law.

6. CPIO, Supreme Court of India v. Subhash Chandra Agarwal (2019):

The Constitution Bench held that the office of the Chief Justice of India is within the RTI framework. The Court also explained that transparency and privacy must be balanced according to the RTI Act.

High Court decisions:

High Courts have also considered questions involving personal information, CCTV footage, government records, public authorities and exemptions. Their decisions

generally emphasize that RTI is a strong transparency law but is subject to the exemptions and procedures contained in the Act.

Conclusion: Judicial decisions have expanded and clarified the right to information while maintaining a balance between transparency, privacy, confidentiality and other legitimate interests.

6. Elaborate the relationship between Fundamental Rights and RTI.

The Right to Information is closely connected with the Fundamental Rights guaranteed by the Constitution of India. Although the Constitution does not expressly list “Right to Information” as a separate Fundamental Right, the Supreme Court has recognized the right to know as part of the freedom of speech and expression.

1. Article 19(1)(a):

Article 19(1)(a) guarantees freedom of speech and expression. The Supreme Court has interpreted this freedom to include the citizens' right to know. A person cannot effectively form opinions or participate in democratic discussion without access to relevant information.

2. Article 21:

Article 21 protects life and personal liberty. Access to certain information can be important for protecting life, liberty and dignity. The RTI Act also provides a special time limit where information concerns the life or liberty of a person.

3. RTI Act as a statutory mechanism:

The RTI Act, 2005 gives a practical legal procedure through which citizens can exercise the right to obtain information from public authorities.

4. Democracy and informed participation:

Information enables citizens to understand government policies, decisions and expenditure and to participate meaningfully in public affairs.

5. Transparency and accountability:

RTI allows citizens to examine public records and question authorities about decisions, delays and use of public money.

6. Reasonable limitations:

The right to information is not absolute. Section 8 and other provisions allow certain information to be withheld to protect national security, privacy, confidentiality and other legitimate interests.

Conclusion: Article 19(1)(a) provides the constitutional foundation for the right to know, while the RTI Act, 2005 provides the detailed statutory machinery for exercising that right.

7. What are the duties and responsibilities under the RTI Act?

The RTI Act creates duties and responsibilities for public authorities, Public Information Officers (PIOs), appellate authorities and citizens.

A. Duties of Public Authorities:

1. Maintain and organize records properly.
2. Ensure that records are catalogued and preserved so that information can be provided when requested.
3. Publish information proactively as required under Section 4.
4. Appoint Public Information Officers and, where required, Assistant Public Information Officers.
5. Provide requested information within the prescribed time.
6. Give proper reasons when information is denied and inform the applicant about the relevant appeal remedy.
7. Protect information that is legally exempt from disclosure.

B. Duties of PIOs:

1. Receive and process RTI applications.
2. Assist applicants who need help in making requests.
3. Transfer applications to the concerned public authority when the information is held elsewhere, as required by the Act.
4. Collect and provide available information in the permitted form.
5. Follow statutory time limits.
6. Apply exemptions only where they are legally applicable.
7. Provide reasons for rejection and details of the appeal authority.

C. Responsibilities of Citizens:

1. Submit applications to the appropriate authority.

2. Clearly specify the information required.
3. Pay the prescribed fee where applicable.
4. Use RTI responsibly and avoid unnecessary repetition.
5. Use the information lawfully and respect privacy and other protected interests.

Conclusion: The RTI Act creates a system in which public authorities must disclose information responsibly and citizens must exercise their right responsibly.

8. What is the concept of Public Authority?

The concept of “Public Authority” is important because the RTI Act mainly creates a right to obtain information from public authorities.

Meaning:

Under Section 2(h) of the RTI Act, a public authority includes an authority, body or institution established or constituted by or under the Constitution, by a law made by Parliament or a State Legislature, or by a government notification or order.

It also includes:

1. Bodies owned by the government.
2. Bodies controlled by the government.
3. Bodies substantially financed, directly or indirectly, by government funds.
4. NGOs substantially financed, directly or indirectly, by government funds.

Examples:

- Central and State Government departments.
- Municipal corporations and local authorities.
- Constitutional bodies.
- Statutory authorities created by law.
- Government-owned or government-controlled bodies.
- Other organizations that satisfy the statutory test of substantial government financing.

Duties of Public Authorities:

- Maintain records properly.
- Provide information in accordance with the RTI Act.
- Publish specified information proactively under Section 4.

- Appoint PIOs.
- Facilitate access to information.

Important point: Not every private organization is automatically a public authority. The statutory conditions relating to establishment, ownership, control or substantial financing must be considered.

Conclusion: A public authority is an organization covered by Section 2(h) that is subject to the duties and disclosure requirements of the RTI Act.

9. Explain the powers and functions of the State Information Commission.

The State Information Commission (SIC) is an independent statutory body established under the RTI Act to deal with RTI matters at the State level. It plays an important role in protecting the right to information.

Functions and Powers:

1. Second appeals: It hears second appeals against decisions of State Public Information Officers and First Appellate Authorities.
2. Complaints: It can inquire into complaints relating to matters covered by the RTI Act, such as refusal to accept an application or failure to provide information.
3. Compliance: It can require a public authority to take necessary steps to comply with the Act.
4. Inquiry powers: During an inquiry, the Commission has powers similar to those of a civil court for specified matters, such as summoning persons, requiring documents and receiving evidence.
5. Penalty: Where the statutory conditions are satisfied, the Commission can impose a penalty on a PIO for unreasonable refusal, delay, malafide denial or other specified violations.
6. Disciplinary recommendation: In appropriate cases, it may recommend disciplinary action against a PIO as permitted by the Act.
7. Annual report: It prepares an annual report on the implementation of the RTI Act in the State.
8. Monitoring implementation: Its decisions help ensure that State public authorities follow the transparency requirements of the Act.

Importance:

The State Information Commission provides an independent forum for citizens when their RTI requests are denied, delayed or improperly handled.

Conclusion: The SIC acts as an important watchdog for implementation of RTI at the State level and helps protect citizens' access to information.

10. Explain the constitutional basis of the Right to Information with Article 19(1)(a) and the RTI Act, 2005.

The constitutional basis of the Right to Information mainly comes from the judicial interpretation of Article 19(1)(a), which guarantees freedom of speech and expression.

1. Article 19(1)(a):

Freedom of speech and expression is meaningful only when citizens can obtain sufficient information to form opinions and communicate them. The Supreme Court has therefore recognized the “right to know” as part of this freedom.

2. Democratic necessity:

In a democracy, citizens need information about government policies, decisions and expenditure to question authorities and participate in public affairs.

3. Judicial development:

The Supreme Court, through important decisions such as *State of Uttar Pradesh v. Raj Narain* and *S.P. Gupta v. Union of India*, developed the principle that citizens have a right to know about public affairs, subject to legitimate restrictions.

4. RTI Act, 2005:

The RTI Act converts this constitutional principle into a detailed statutory mechanism. It provides procedures for requesting information, time limits, appeals and exemptions.

5. Section 8 exemptions:

The Act does not provide unlimited access. Certain information may be withheld to protect interests such as national security, privacy and confidentiality.

6. Section 22:

The RTI Act has an overriding effect over inconsistent provisions of other laws, subject to the Act's own provisions.

Conclusion: Article 19(1)(a) provides the constitutional foundation of the right to know, while the RTI Act, 2005 provides the practical legal framework through which citizens exercise that right.

11. Explain the procedure of filing an RTI.

The RTI Act provides a simple procedure for obtaining information from a public authority.

Step 1 – Identify the Public Authority:

First, identify the government department or public authority that holds the required information.

Step 2 – Identify the PIO:

Address the application to the concerned Public Information Officer (PIO). For Central Government matters, an applicant may also use the prescribed online RTI facility where available.

Step 3 – Prepare the application:

Write the required information clearly and specifically. The applicant does not normally need to give reasons for asking for information.

Step 4 – Pay the prescribed fee:

Pay the applicable RTI application fee according to the relevant rules. Persons entitled to fee exemption should follow the applicable procedure.

Step 5 – Submit the application:

Submit the application to the concerned PIO through an accepted method, such as the prescribed online system or other permitted mode.

Step 6 – Wait for the response:

Normally, information is to be provided within 30 days. Where the request concerns the life or liberty of a person, the applicable period is 48 hours.

Step 7 – First Appeal:

If information is not supplied within the prescribed period, or the applicant is dissatisfied with the decision, a first appeal can be filed before the First Appellate Authority within the period prescribed by the Act.

Step 8 – Second Appeal/Complaint:

If the matter is still not resolved, the applicant may approach the concerned Central or State Information Commission through a second appeal or complaint, as applicable.

Important points:

- Ask for existing records, documents, reports or information held by the authority.
- Keep a copy of the application and proof of submission.
- Clearly identify the information required.
- Follow the applicable fee and procedural rules.

In short:

Identify authority → Address PIO → Write clear questions → Pay fee → Submit application → Receive information → First appeal if needed → Second appeal/complaint if required.